

Calaveras Superior Court
Civil Law & Motion Calendar
Friday, July 23, 2021; 9:00 AM
Hon. David M. Sanders, Courtroom 2

9:00 AM 16CV41853 Motion to Dismiss for Delay in Prosecution 09/01/2016 08/18/2021 Case Management Conference

X-C: Schulz, Elizabeth
Def/Res: Hyatt, Dylan P.

Atty: Sternfeld, David I.
Atty: Huber, Jonathan Paul

TENTATIVE RULING: Dylan P. Hyatt, as personal representative of the estate of Jonathan Alan Hughes (Hyatt) moves, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (1) and (2)(A), for an order dismissing Elizabeth Schulz' (Schulz) action with prejudice on the grounds that Schulz has failed to properly serve moving party with a summons and complaint within two years of commencing her action, and that Schulz has delayed prosecuting the action and failed to bring it to trial within three years after its commencement.

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).)

The Court construes Hyatt's stipulation to an extension of time to answer the Amended Cross-Complaint as a waiver of the short-comings in service asserted as the basis for the motion. (See Stipulation filed June 1, 2021.) The Court declines to exercise its discretion and dismiss the action.

The Court further notes that should the conditions for dismissal provided for in Code of Civil Procedure section 583.310 be satisfied, such dismissal will be processed in due course through the Court's Case Management calendar and is not, therefore, a proper subject for motion by a party.

Based on the foregoing, the Motion is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Elizabeth Schulz to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM	18PR8058	Motion to Dismiss for Delay in Prosecution	06/22/2018	08/18/2021	Case Management Conference
Petrn:	Lombino, Jaimee			Atty:	Huber Law Group APC
Decedent:	Hughes, Jonathan			Atty:	
TENTATIVE RULING: Dylan P. Hyatt, as personal representative of the estate of Jonathan Alan Hughes (Hyatt) moves, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (1) and (2)(A), for an order dismissing Elizabeth Schulz' (Schulz) action with prejudice on the grounds that Schulz has failed to properly serve moving party with a summons and complaint within two years of commencing her action, and that Schulz has delayed prosecuting the action and failed to bring it to trial within three years after its commencement. "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).) The Court construes Hyatt's stipulation to an extension of time to answer the Amended Cross-Complaint as a waiver of the short-comings in service asserted as the basis for the motion. (See Stipulation filed June 1, 2021.) The Court declines to exercise its discretion and dismiss the action. The Court further notes that should the conditions for dismissal provided for in Code of Civil Procedure section 583.310 be satisfied, such dismissal will be processed in due					